

# **Notice of Intent to Brand Name Sole Source**

**Agency:** Department of Energy

**Office:** Advanced Research Projects Agency – Energy (ARPA-E)

**Notice Type:** Special Notice / Intent to Sole Source Solicitation Number: N/A

**NAICS Code:** 541199

**Title:** Notice of Intent to Award a Brand Name Sole Source Modification for LexisNexis Total Patent One

**1. Action Code:** N/A (Pre-solicitation Notice)

**2. Subject:** Intent to Award a Brand Name Sole Source Contract to LexisNexis for Total Patent One.

**3. Description:** The Department of Energy, ARPA-E, intends to award a brand name sole source modification to its existing LexisNexis legal database purchase order for the 'Total Patent One' software. This acquisition is for one user license to access LexisNexis Total Patent One, a specialized patent search and analysis tool, designed for seamless integration with ARPA-E's current LexisNexis subscription. This will be for one base year and three option years. The required features of this software include:

- Access to over 175 million documents across more than 100 authorities.
- Availability of 70 authorities with full-text Boolean search capability.

LexisNexis Total Patent One is a proprietary software designed for patent researchers, offering comprehensive, up-to-date, and relevant results from a vast online collection of enhanced first-level patent data. The software provides extensive coverage of patent information from over 100 authorities globally and includes features such as machine translation for cross-authority searching and standardized numbering for consistent data analysis.

**4. Justification for Other Than Full and Open Competition:** This procurement is being conducted under FAR Part 13, Simplified Acquisition Procedures. Competition is limited under FAR 13.106-1(b)(1), as the Contracting Officer has determined that LexisNexis is the only source reasonably available to meet ARPA-E's specific and integrated requirements for a patent module. This determination is further supported by the principles outlined in FAR 6.302-1(a)(2)(ii)(A), which addresses situations where substantial duplication of cost would occur if an alternative source were used.

Based on comprehensive market research, LexisNexis 'Total Patent One' has been identified as the sole source capable of providing the required patent module solution, primarily due to its exclusive and proprietary integration with ARPA-E's existing LexisNexis legal database subscription. ARPA-E requires a patent search and analysis tool that offers the requisite breadth of coverage, encompassing over 175 million documents from more than 100 authorities, and the depth of search capabilities, specifically full-text Boolean search across 70 authorities. This unique integration of extensive global patent data with advanced search functionalities is critical for enabling thorough and accurate prior art searches, which are indispensable for intellectual property protection and research and development initiatives. It further supports crucial patent analysis for policy development and enhances operational efficiency by leveraging established system structures and search protocols.

The critical factor necessitating this sole source action is that no other vendor currently offers a patent module capable of integrating with ARPA-E's existing LexisNexis licenses. Acquiring a patent module from any other source would, therefore, compel ARPA-E to procure an entirely new, separate base legal research license and platform from an alternative vendor. This would result in a demonstrable and unrecoverable duplication of cost to the Government, including:

The purchase of a redundant foundational legal research platform.

Significant IT integration and data migration expenses to reconcile disparate systems.

Mandatory and extensive retraining of personnel on an entirely new system, diverting valuable time and resources.

Furthermore, transitioning to an alternative provider for a basic service and a separate patent subscription would cause unacceptable delays in providing essential legal support and introduce considerable operational inefficiencies. Operating two disconnected legal research environments would fragment information access, increase administrative burden, and potentially lead to inconsistent research outcomes, thereby directly impeding ARPA-E's mission.

Conversely, integrating the 'Total Patent One' patent module into the current LexisNexis plan presents a demonstrably cost-efficient and streamlined solution that maximizes our prior investment and ensures uninterrupted operational efficiency.

**5. Response Submission:** This notice of intent is not a request for competitive proposals. However, interested parties who believe they can meet the stated requirements by providing an equivalent product or service are invited to submit capabilities statements, proposals, or any other relevant information demonstrating their ability to fulfill this requirement. All responses must be submitted in writing via email to sara.feki@hq.doe.gov by 10am on May 12, 2026. Responses received after this date and time may not be considered.

**6. Contact Information:**

Sara Feki, Contract Specialist  
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**7. Estimated Award Date:** May 19, 2026